

Mohr. Idrish v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 August 2022 · WRIT - C No. 20376 of 2022 · **Writ disposed; 6.8 objection liberty; coercive recovery stayed eight weeks.**

HEADNOTE

A writ seeking certiorari to quash a Tehsildar recovery certificate for a distribution-licensee demand was disposed of without examining merits. The consumer was given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, with a short stay of coercive recovery.

FACTUAL SUMMARY

The petitioner, Mohr. Idrish, filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery certificate dated 26 August 2021 issued by the Tehsildar, Moradabad, for Rs. 3,67,062/-. The Power Distribution Corporation was arrayed as respondent No. 2. Counsel for the licensee stated on instructions that the petitioner could file an objection against the impugned demand, which would then be decided in accordance with law within a time-bound period. The Court heard counsel for the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory objection to assessment demand

HOLDING

Without expressing any opinion on merits, the writ challenging a Tehsildar recovery certificate is disposed of with liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, before the distribution licensee within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a Tehsildar recovery of a licensee demand was disposed of by relegating the consumer to the statutory objection under para 6.8, without a merits decision. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to file a para 6.8 objection within four weeks, with a direction for time-bound disposal after hearing and an eight-week stay of coercive recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE AND UNDERLYING DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1